

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Revision Case No.541 of 2024

Md. Bepul
....Petitioner
-Versus-
The State
.... Opposite Party
Md. Tajul Islam Miajee, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, DAG
... For the State

Heard and Judgment on 05.03.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the judgment and order dated 19.07.2023 passed by the learned Additional Metropolitan Sessions Judge, Court No.11 Dhaka in Metro. Sessions Case No.24529 of 2022 arising out of Khilkhet Police Station Case No.38 dated 29.03.2022 corresponding to G. R. No.103 of 2022 under table 10(Ga)/40/38 of section 36(1) of the Madok Drabbya Niantraon Ain, 2018 rejecting the prayer for jimma of the alleged seized Private Car being registration No.Dhaka Metro-Ga-45-5455, Chassis No.260-3162989 in favour of he accused petitioner, now pending in the Court of learned Metropolitan Sessions Judge, Court No.11, Dhaka should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned Additional Metropolitan Sessions Judge, Court No.11, Dhaka for

getting zimma (custody) of the above mentioned seized Private Car bearing registration No.Dhaka Metro-Ga-45-5455, Chassis No.260-3162989, but the learned Additional Metropolitan Sessions Judge, Dhaka rejected the said petition by order 19.07.2023.

Challenging the legality and propriety of above order the petitioner has moved to this court and obtained this Rule.

Md. Tajul Islam Miajee, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above Private Car. Above Private Car is kept in the open sky in front of the police station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above Private Car and he will ensure better maintenance of the same and produce the Private Car before the Court below whenever he is asked to do so. But the learned Additional Metropolitan Sessions Judge, Dhaka has failed to appreciate above materials on record and most illegally rejected above application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes the petition for getting jimma stating that the seized Private Car was used for transportation of narcotics.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that 30,000(thirty thousand) pieces of yaba tablets were recovered from above seized Private Car. On conclusion of investigation police has already submitted charge sheet in above case on 31.05.2022 under section 10(Ga)/38/41 of the Madok Drobba Niantran Ain, 2018. It further turns out from record that the petitioner is the owner of the seized Private Car. The ultimate fate of the above seized Private Car shall be determined at trail. But in the meantime above Private Car which is a valuable asset requires proper maintenance. If the Private Car is given in the jimma to the petitioner who

is the rightful owner of the same then the proper maintenance of the vehicle will be ensured. The petitioner shall produce above Private Car to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned Additional Metropolitan Sessions Judge, Dhaka committed an error in rejecting the application of the petitioner seeking jimma of above Private Car which is not tenable in law.

In the result, the Rule is made absolute.

The judgment and order dated 19.07.2023 passed by the learned Additional Metropolitan Sessions Judge, Court No.11 Dhaka in Metro. Sessions Case No.24529 of 2022 arising out of Khilkhet Police Station Case No.38 dated 29.03.2022 is set aside.

The learned Additional Metropolitan Sessions Judge, Court No.11 Dhaka is directed to place above Private Car in the jimma of the petitioner with condition that the petitioner shall produce the Private Car to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.